
NON-DISCLOSURE AGREEMENT

Private Equity Fund — Portfolio Data Room Access (Receiving Party)

BETWEEN

Corvus Capital Partners IV LP c/o Corvus GP LLC, 299 Park Avenue, New York, NY 10171 Exempt
Limited Partnership — Delaware / Cayman Islands GP

— and —

NovaTech Solutions Inc. 450 Serra Mall, Palo Alto, California 94305 | Delaware Corporation (the
"Receiving Party")

Reference: **CCP-IV-NDA-2024-038**

Date: **7 January 2025**

Governing Law: **State of New York, United States**

Confidentiality Level: **CONFIDENTIAL — FUND AND PORTFOLIO COMPANY INFORMATION**

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1. DEFINITIONS

1.1 In this Agreement:

"Agreement" means this Non-Disclosure Agreement;

"Authorised Representatives" means employees, officers, and professional advisers of the Receiving Party with a need to know for the Purpose, bound by equivalent confidentiality obligations;

"Confidential Information" has the meaning in Section 2;

"Effective Date" means 7 January 2025;

"Fund" means Corvus Capital Partners IV LP, a Delaware limited partnership;

"MNPI" means material non-public information within the meaning of Section 10(b) of the Securities Exchange Act of 1934, as amended, and Rule 10b-5 promulgated thereunder, and any applicable foreign securities law equivalents;

"Portfolio Companies" means any entity in which the Fund holds or has held a direct or indirect investment, whether as a current or historical portfolio investment, as may be updated from time to time by written notice from the Fund to the Receiving Party;

"Purpose" means the evaluation by the Receiving Party of potential technology services and software integration opportunities with the Fund and its Portfolio Companies;

"Receiving Party" means NovaTech Solutions Inc.;

1.2 Standard interpretation applies.

2. CONFIDENTIAL INFORMATION — EXTENDED SCOPE

2.1 **"Confidential Information"** means all information disclosed by or on behalf of the Fund to the Receiving Party in connection with the Purpose, including: (a) financial data, operational metrics, management accounts, forecasts, and valuations of the Fund and each Portfolio Company; (b) investment strategies, deal flow, pipeline transactions, and capital structure; (c) investor identity, commitments, distributions, and side letter terms; (d) fund economics, management fees, carried interest, and GP co-investment; and (e) information relating to **any Portfolio Company in which the Fund holds or has held a direct or indirect investment, including companies that are no longer current portfolio investments**.

2.2 **Dynamic Portfolio Scope.** The Fund may, by written notice to the Receiving Party at any time, add additional Portfolio Companies or entities to the scope of Confidential Information hereunder, with immediate effect. The Receiving Party's obligations shall apply to all such entities from the date of notice. The Receiving Party acknowledges that a complete list of Portfolio Companies is not available as of the Effective Date and accepts obligations with respect to all Portfolio Companies regardless of whether individually identified.

2.3 **Exclusions.** Standard exclusions apply for publicly available information, prior knowledge, independent development (documented), and authorised third-party disclosure. **The exclusions in this Section 2.3 shall not apply to information relating to Portfolio Company operations, financial performance, or strategic plans. Such information shall remain Confidential Information regardless of public availability, prior knowledge, or independent development, given the material non-public nature of portfolio company data.**

3. OBLIGATIONS

3.1 The Receiving Party shall use **reasonable care** to protect Confidential Information and shall not disclose it without prior written consent. Disclosure is restricted to Authorised Representatives with a need to know.

3.2 **Competitor Restriction.** The Receiving Party shall not share Confidential Information with any individual or entity that is a competitor of any Portfolio Company. The Receiving Party acknowledges it bears sole responsibility for assessing competitive relationships and indemnifies the Fund against any loss arising from a breach of this restriction.

4. TERM — DUAL TIER

4.1 Standard confidentiality obligations: five (5) years from the Effective Date.

4.2 **Perpetual MNPI Obligations.** Obligations relating to any information that constitutes MNPI shall be **perpetual and shall not expire regardless of the passage of time.** The determination of what constitutes MNPI is the sole responsibility of the Receiving Party. The Receiving Party acknowledges that it may not be possible to segregate MNPI from other Confidential Information and agrees to treat all Confidential Information as potentially constituting MNPI for purposes of this Section.

5. SECURITIES TRADING RESTRICTION

5.1 **Acknowledgement of MNPI Risk.** The Receiving Party acknowledges that information disclosed in the data room may constitute MNPI within the meaning of Section 10(b) of the Securities Exchange Act of 1934 and Rule 10b-5 thereunder, and applicable securities laws of other jurisdictions.

5.2 **Trading Prohibition.** The Receiving Party hereby covenants and agrees that it shall not, and shall cause its employees, officers, directors, and affiliates not to, directly or indirectly, **purchase, sell, tender, transfer, gift, or otherwise trade in or with respect to any securities, options, derivatives, or other instruments referencing any Portfolio Company** for a period of **eighteen (18) months** from the date of last disclosure of Confidential Information. The parties acknowledge that violation of this provision may constitute insider trading under federal securities law and is not subject to any contractual limitation of liability or indemnification provision of this Agreement.

5.3 **Compliance Programme.** The Receiving Party shall maintain a written securities compliance policy that incorporates the restrictions of this Section 5 and shall certify in writing, upon request, compliance with this policy.

6. RETURN OR DESTRUCTION

6.1 Ten (10) Business Days from request or termination to return or destroy. Written certification required.

7. REMEDIES

7.1 Fund entitled to seek injunctive relief, specific performance, all available equitable remedies, and recovery of actual losses including lost investment returns. The Fund may seek relief in any court of competent jurisdiction.

8. NO LICENCE

8.1 No licence, right, or interest in any Confidential Information or Portfolio Company is granted hereunder.

15. NOTICES

15.1 Any notice, demand, request, or other communication required or permitted to be given under or in connection with this Agreement shall be in writing and shall be delivered: (i) by hand; (ii) by internationally recognised overnight courier service; (iii) by registered or certified mail, return receipt requested, postage prepaid; or (iv) by electronic mail with confirmation of receipt and a hard copy sent by one of the foregoing methods within two (2) business days of transmission.

15.2 Notices shall be addressed as follows:

If to Corvus Capital Partners IV LP (by Corvus GP LLC):

299 Park Avenue, New York, NY 10171, United States

Attention: General Counsel, Corvus GP LLC

If to NovaTech Solutions Inc.:

450 Serra Mall, Palo Alto, California 94305, United States

Attention: General Counsel, NovaTech Solutions Inc.

15.3 Notices shall be deemed to have been duly given: (a) upon delivery, if delivered by hand; (b) on the next business day after despatch, if sent by overnight courier; (c) on the fifth (5th) business day after posting, if sent by registered mail; or (d) upon electronic confirmation of receipt, if sent by email, provided that the hard copy is despatched within two (2) business days thereafter. Either party may change its notice address by giving written notice to the other party in accordance with this Section 15.

16. ASSIGNMENT

16.1 Neither party may assign, transfer, delegate, or otherwise dispose of any of its rights or obligations under this Agreement, whether by operation of law or otherwise, without the prior written consent of the other party, such consent not to be unreasonably withheld, conditioned, or delayed. Any purported assignment in violation of this Section 16 shall be null and void and of no force or effect.

16.2 Notwithstanding Section 16.1, either party may, without the consent of the other party, assign its rights and obligations under this Agreement to: (a) an affiliate of the assigning party; or (b) a successor entity in connection with a merger, acquisition, reorganisation, or sale of all or substantially all of the assigning party's assets or business to which this Agreement relates, provided that: (i) the assignee assumes in writing all of the assigning party's obligations under this Agreement; (ii) the assigning party provides the other party with prompt written notice of such assignment; and (iii) the assignment does not result in a reduction of the protections afforded to the other party under this Agreement.

17. ENTIRE AGREEMENT

17.1 This Agreement, together with any schedules and exhibits attached hereto and incorporated herein by reference, constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior and contemporaneous negotiations, representations, warranties, understandings, letters of intent, term sheets, and agreements, whether oral or written, relating to such subject matter. Each party acknowledges that it has not relied on any representation, warranty, or undertaking that is not set out in this Agreement.

17.2 The parties agree that the recitals set out at the beginning of this Agreement form part of this Agreement and are incorporated herein by reference.

18. AMENDMENTS

18.1 No modification, amendment, or waiver of any provision of this Agreement shall be effective unless made in writing and duly executed by authorised representatives of both parties. No oral amendment or modification of this Agreement shall be binding on either party regardless of any course of dealing or course of performance between the parties.

19. SEVERABILITY

19.1 If any provision of this Agreement is held by a court or tribunal of competent jurisdiction to be invalid, illegal, void, or unenforceable under applicable law, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable, and the validity, legality, and enforceability of the remaining provisions of this Agreement shall not in any way be affected or impaired thereby, provided that the economic and legal substance of the transactions contemplated by this Agreement is not affected in any manner materially adverse to either party.

19.2 If any provision of this Agreement is held to be invalid or unenforceable as written but would be valid or enforceable if modified, such provision shall apply with the modification necessary to make it valid and enforceable under applicable law, and the parties agree to negotiate in good faith a replacement provision that, to the greatest extent possible, achieves the original intent and economic effect of the invalid or unenforceable provision.

20. WAIVER

20.1 No failure or delay by either party in exercising any right, power, or privilege under this Agreement shall operate as a waiver thereof, nor shall any single or partial exercise of any right, power, or privilege preclude any other or further exercise thereof or the exercise of any other right, power, or privilege. No waiver of any provision of this Agreement shall be effective unless made in writing and signed by a duly authorised representative of the waiving party.

20.2 The rights and remedies provided in this Agreement are cumulative and not exclusive of any other rights or remedies that a party may have at law or in equity.

21. NO PARTNERSHIP, AGENCY, OR JOINT VENTURE

21.1 Nothing in this Agreement shall be construed to create a partnership, joint venture, employment relationship, or agency relationship between the parties. Neither party shall have any right, power, or authority to bind or obligate the other party in any manner or make any representation on behalf of the other party without the prior written consent of such other party. Each party shall remain an independent contractor in relation to the other party.

22. COUNTERPARTS AND ELECTRONIC SIGNATURES

22.1 This Agreement may be executed in one or more counterparts, each of which shall be deemed an original and all of which, taken together, shall constitute one and the same instrument. Delivery of an executed counterpart of a signature page by electronic transmission (including PDF, DocuSign, or similar electronic signature platform) shall be equally effective as delivery of a manually executed counterpart. A party that delivers a counterpart by electronic transmission shall promptly thereafter deliver a manually executed counterpart to the other party, but failure to do so shall not affect the validity or enforceability of this Agreement.

22.2 Electronic signatures applied through a recognised electronic signature platform (including DocuSign, Adobe Sign, or equivalent) shall constitute valid and binding signatures for the purposes of this Agreement and shall have the same legal effect as handwritten signatures to the fullest extent permitted by applicable

law, including the Electronic Signatures in Global and National Commerce Act (E-SIGN Act), the Uniform Electronic Transactions Act (UETA), and any applicable foreign equivalent.

23. FORCE MAJEURE

23.1 Neither party shall be in breach of this Agreement or liable to the other party for any delay in performing, or failure to perform, any of its obligations under this Agreement (other than payment obligations) if and to the extent that such delay or failure results from events, circumstances, or causes beyond its reasonable control, including acts of God, pandemic, epidemic, war, terrorism, civil disturbance, government action, regulatory change, or failure of third-party telecommunications or internet infrastructure (a "Force Majeure Event"). In such circumstances, the affected party shall: (a) notify the other party in writing promptly upon becoming aware of the Force Majeure Event; (b) use all reasonable endeavours to mitigate the effect of the Force Majeure Event; and (c) resume performance as soon as reasonably practicable after the cessation of the Force Majeure Event.

23.2 If a Force Majeure Event continues for a period in excess of sixty (60) consecutive days, either party may terminate this Agreement on ten (10) days' written notice to the other party, without liability to either party for such termination.

24. GOVERNING LAW AND DISPUTE RESOLUTION

24.1 **Governing Law.** This Agreement and any dispute, controversy, or claim arising out of or in connection with it or its subject matter, formation, existence, negotiation, validity, termination, or enforceability (including non-contractual disputes or claims) shall be governed by and construed in accordance with the laws of **State of New York, United States**, without regard to its conflict of laws principles.

24.2 **Jurisdiction.** Each party irrevocably agrees that the courts of **the State of New York (New York County) and the Southern District of New York** shall have exclusive jurisdiction to settle any dispute or claim arising out of or in connection with this Agreement or its subject matter or formation. Each party irrevocably waives any objection to the courts of the State of New York (New York County) and the Southern District of New York on the grounds of inconvenient forum or any other grounds.

24.3 **Injunctive Relief.** Notwithstanding the foregoing, either party may seek urgent interlocutory or interim injunctive relief from any court of competent jurisdiction without waiving its right to invoke the dispute resolution procedure set out in this Section 24.

IN WITNESS WHEREOF

EXECUTED as a legally binding agreement on the date first written above.

SIGNED for and on behalf of

**Corvus Capital Partners IV LP (by its General Partner,
Corvus GP LLC)**

SIGNED for and on behalf of

NovaTech Solutions Inc.

Signature: _____

Signature: _____

Print Name: [NAME]

Title: Managing Partner

Date: _____

Witness Name: _____

Witness Sig.: _____

Print Name: [NAME]

Title: General Counsel

Date: _____

Witness Name: _____

Witness Sig.: _____